

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1026

By: Hardin

AS INTRODUCED

An Act relating to crimes and punishments; making certain acts unlawful; providing penalties; defining terms; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 650.12 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. Every person who, without justifiable or excusable cause and with intent to do bodily harm, commits any assault, battery, or assault and battery upon a security officer, private investigator, or bail enforcer is, upon conviction, guilty of a misdemeanor punishable by imprisonment in the county jail not exceeding one (1) year, or by a fine not exceeding One Thousand Dollars (\$1,000.00), or by both such fine and imprisonment.

B. As used in this section:

1 1. "Security officer" means any person who is currently
2 licensed by the State of Oklahoma as either an armed or unarmed
3 security officer, or is lawfully employed as a security officer but
4 exempt from the licensing requirements provided for in state
5 statute, who is wearing a uniform that clearly identifies the
6 individual as a security officer with at least one emblem or
7 insignia that identifies the employing security firm or agency or if
8 the individual is in plain clothes, is wearing a distinctive badge
9 that identifies the employing security firm or agency, and is
10 engaged in the lawful performance of his or her duties at the time
11 the incident occurred;

12 2. "Private investigator" means any person who is currently
13 licensed by the State of Oklahoma as either an armed or unarmed
14 private investigator who is either wearing distinctive clothing that
15 has a distinctive emblem, logo or badge that identifies the
16 employing firm or agency or when the private investigator identifies
17 himself or herself or provides proof of employment as a private
18 investigator, and is engaged in the lawful performance of his or her
19 duties at the time the incident occurred; and

20 3. "Bail enforcer" means any person who is currently licensed
21 by the state of Oklahoma as either an armed or unarmed bail enforcer
22 and is ether wearing distinctive clothing that has a distinctive
23 emblem, logo or badge that identifies the bail enforcer as such and
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1 is be engaged in the lawful performance of his or her duties at the
2 time the incident occurred.

3 SECTION 2. This act shall become effective November 1, 2025.

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